

Elections & Electoral Finance

How the only nationally elected executive is actually chosen: two tests at once, a 60% waiver, a runoff with no second test, and — when arithmetic runs out — a lot drawn in public. Then the money rules, which begin by removing campaign cash from protected speech entirely.

§7.1 - §7.3 • §8.1 - §8.4
8 provisions

THE DUAL TEST — §7.1

Test 1 — National RCV Majority

A **majority of votes cast nationally**, under Ranked Choice Voting. Every citizen's vote counts here — **Territory citizens included**.

BOTH

Test 2 — State Plurality

More first-preference votes than any other candidate in a **majority of the Republic's States**. Breadth, not just depth — a candidate must win rooms across the country, not one region overwhelmingly. Territories are not counted here.

60%

The waiver: a national RCV majority at or above 60% of votes cast waives the State plurality test — consent that overwhelming is already broad. The same 60% governs the direct electoral supermajorities specified in §7.3 (§7.3): SC public confirmation under the Senate bypass, and public-election removal of a constitutional officer. Statute cannot move it in either direction.

WHEN NO ONE WINS OUTRIGHT — §7.1

STEP 1

Top Two Advance

The two highest national first-preference totals. Tied for second? The Elections Panel draws by lot.



STEP 2

Runoff — One Test Only

National RCV alone. The State plurality requirement does not apply in a runoff — the field has narrowed; the breadth test has done its work.



IF TIED

Public Lot

The Elections Panel determines the winner by lot in a public session, published to the NRS. Final. The edge case is pre-answered, not improvised.



CERTIFICATION

14-Day Window

Challengeable only before the SC, within 14 days, by either candidate, a State/Territory government (own-jurisdiction accuracy only), or the Panel itself on material error.

THE MONEY AND THE CONDUCT — §8.1, §8.2, §8.3, §8.4

Electoral Finance §8.1

Disclose everything to the Panel

Individual cap by statute

Corporate / foreign: prohibited

Anonymity in electoral finance is prohibited. Every contribution is disclosed in full to the Elections Panel — no threshold, no exception — and published to the NRS, which may present the smallest contributions in aggregate to protect donor privacy. Coordinated expenditures are treated as direct contributions. And the foundation under all of it: **campaign money is explicitly not protected speech under §1.5** — the regulation is reserved from both speech and associational protection, so the whole framework can't be dissolved by one court case.

Conduct, Airwaves & Financing §8.2 • §8.3 • §8.4

Foreign help = disqualified

Free spectrum access

Public financing available

Knowingly accepting foreign assistance disqualifies a candidate from that cycle. Officeholders campaigning for a different office must keep official resources fully separate. Public-spectrum licensees owe **equal free access** to qualified candidates during the electoral period — the airwaves belong to the public that licenses them. And the Legislature must establish a **public campaign financing system** available to all qualified candidates on equal terms, providing a genuine alternative to private fundraising.

THE CALENDAR NO ONE CAN TOUCH — §7.2, §7.2.A

2-6-6

years — Assembly / Senate (staggered) / Consular cycles. All federal elections are **RCV, majority required**, run on the National Voting System.

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power the Legat Consul has over election timing — **cannot declare, postpone, or influence scheduling**, including via emergency declarations.

90

days — maximum postponement, and only after an Elections Panel impossibility finding plus **2/3 of both chambers**. Elections within 30 days of the normalization finding.

§7.3

one threshold, one home — **60% of votes cast** for every direct electoral supermajority. No statute can raise or lower it anywhere.